



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 27TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 3, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ABSENT: none

ORDINANCE NO. 17
Series of 2026

**“AN ORDINANCE INSTITUTIONALIZING A CALAMITY RESILIENT INFRASTRUCTURE FACILITIES IN THE
TERRITORIAL JURISDICTION OF THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR
AND PROVIDING GUIDELINES FOR ITS IMPLEMENTATION THEREOF”**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the Department of Human Settlement and Urban Development (DHSUD) Act (Republic Act No 11201), the Climate Change Act of 2009 and the National Disaster Risk Reduction and Management Act of 2010 (Republic Act No 11021) require the mainstreaming of climate and disaster risks into a local planning and development;

WHEREAS, the integration of Climate Change Adaptation (CCA) and the Disaster Risk Reduction (DRR) into the Municipality's Comprehensive Land Use Plan (CLUP) and Zoning Ordinances;

WHEREAS, many communities especially informal settlements in flood prone areas are highly susceptible to natural hazards and lack the resources to recover, making protective measures critical;

WHEREAS, the key goal is to protect the most vulnerable citizens such as informal settlers, by ensuring safe, secure and affordable housing options in low- risk areas;

WHEREAS, a local Ordinance ensures alignment with national frameworks like the National Urban Development and Housing Framework (NUDHF) and the resilient and Green Human Settlements Framework (GHSF) creating a cohesive, whole of government approach to resilience;

WHEREAS, resilient infrastructure reduces damage and the high costs of post disaster recovery, ensuring economic continuity and attracting private investment by minimizing risk;

WHEREAS, the said Ordinance aims to establish and enforce safety standards for all new and existing infrastructure to ensure structural integrity and safety to withstand anticipated climate impacts and natural disasters;

WHEREAS, it seeks to promote green approaches, sustainable land management and resilient urban design strategies like adequate open spaces, improved drainage system, green buildings and protection dikes that enhances the overall quality of life and environmental sustainability;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. SHORT TITLE- This Ordinance shall be known as "A CALAMITY RESILIENT INFRASTRUCTURE ORDINANCE IN THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR."

Section 2. DECLARATION OF POLICY- It is hereby a policy of the Municipality of Carmen, Province of Surigao del Sur to protect the safety and welfare of its citizens by ensuring that all infrastructure projects, especially those related to calamity response and prevention are designed, constructed and maintained to withstand the impacts of natural disasters and climate change in accordance with DHSUD guidelines and standards.

Section 3. PURPOSE- This Ordinance aims to:

- 1) Incorporate DHSUD guidelines on climate change and disaster risk-informed land use planning into local regulations.
- 2) Establish standards for the construction and maintenance of calamity-resilient infrastructure.
- 3) Ensure that all infrastructure projects comply with the National Building Code and other relevant laws and regulations.
- 4) Provide a framework for the prioritization and funding of calamity resilient infrastructure projects.

Section 4. SCOPE- This Ordinance shall apply to all infrastructure projects both private and public within the Municipality of Carmen, Surigao del Sur including but not limited to:

- 1) Evacuation Center
- 2) Drainage System
- 3) Flood Control Structures
- 4) Roads and Bridges
- 5) Water Supply
- 6) Public and Private Buildings
- 7) Infrastructure

Section 5. DEFINITION OF TERMS-

- 1) **CALAMITY-** a disastrous event whether natural or human induced.

- 2) CALAMITY-RESILIENT INFRASTRUCTURE- infrastructure that is designed, constructed and maintained to withstand the impacts of natural disaster and climate change.
- 3) DHSUD GUIDELINES- the guidelines and standards issued by the Department of Human Settlement and Urban Development related to climate change and disaster risk informed land use and urban planning system.
- 4) NO BUILD ZONES- areas identified as high risk and unsuitable for construction.

Section 6. LOCALIZATION OF DHSUD GUIDELINES-

- a) The Municipality of Carmen, Surigao del Sur shall adopt and implement DHSUD guidelines on climate change and disaster risk informed land use planning as outlined in the Department Order No. 2023-006.
- b) All infrastructure projects shall adhere to the standards and specifications set forth in the DHSUD guidelines, ensuring they are climate change resilient and designed to withstand local hazards.
- c) The Municipal Planning and Development Office (MPDO) shall integrate these guidelines into the Comprehensive Land Use Plan (CLUP) and Zoning Ordinance.

Section 7. IMPLEMENTATION & ENFORCEMENT-

- a) The MPDC shall be responsible for the implementation and enforcement of this Ordinance.
- b) The Municipal Engineering Office shall ensure that all infrastructure projects comply with the provisions of this Ordinance and the DHSUD guidelines.
- c) Building Permits shall not be issued for projects that do not comply with these requirements.
- d) Regular inspections shall be conducted to ensure ongoing compliance.

Section 8. CLIMATE RESILIENT LAND USE PLANNING-

- a) The Municipality of Carmen, Surigao del Sur shall enforce the No Build Zones in areas identified as high risk based on geo-hazard maps and climate risk assessment.
- b) The CLUP shall be updated regularly to incorporate the latest climate change and geo-hazard data from relevant national agencies.
- c) The Municipality of Carmen, Surigao del Sur shall promote green infrastructure and open spaces to mitigate the impacts of climate change and reduce risk disaster.

Section 9. PRIORITIZATION & FUNDING-

- a) The Municipality of Carmen, Surigao del Sur shall prioritize infrastructure projects that enhance the community's resilience to calamities.
- b) The MDRMO shall identify and recommend priority project for funding.
- c) The Annual Budget shall allocate sufficient funds for the construction, maintenance and upgrading of calamity resilient infrastructure.
- d) The Municipality of Carmen, Surigao del Sur will explore direct borrowing or financial mechanism to fund infrastructure projects especially for repairs and reconstruction after calamity.

Section 10. PUBLIC AWARENESS AND PARTICIPATION-

- a) The Municipal Government of Carmen, Surigao del Sur shall conduct a public awareness campaign to educate residents about the importance of calamity resilient infrastructures.
- b) The Municipal Government of Carmen, Surigao del Sur shall encourage community participation in the planning and implementation of infrastructure projects.

Section 11. PENALTIES- Any person or entity violating the provisions of this Ordinance shall be subject to the following penalties:

First Offense- Warning

Second Offense- a fine of one Thousand Pesos only (Php 1,000.000).

Third Offense- a fine of Two Thousand Five Hundred Pesos (Php 2,500.00).

Fourth and Succeeding Offense- revocation of permits and other sanctions as deemed Appropriate.

Section 12. SEPARABILITY CLAUSE- If any provisions of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

Section 13. REPEALING CLAUSE- Any Ordinance, rule, regulation inconsistent with the provisions of this Ordinance is hereby repealed or modified accordingly.

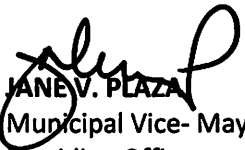
Section 14. EFFECTIVITY CLAUSE- This Ordinance shall take effect twenty- one (21) days after its posting in at least 2 conspicuous public places of the Local Government Unit of Carmen, Surigao del Sur.

ENACTED this 3rd day of February, 2026 at Carmen, Surigao del Sur.

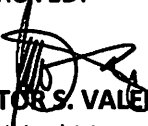
I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
2-16-2026